

Between Gavel and Conscience: An Analysis of Law and Justice in Hawthorne's *The Scarlet Letter*

People have strange ways of dealing with conflict. Ancient societies often used methods of public humiliation, like Rome's practice of crucifixion, to deter rebellion and shame offenders. Hawthorne's novel introduces the concepts of law and order using a multitude of methods. He illustrates these ideas through the community's treatment of Hester, the relationship between Dimmesdale and Chillingworth, and the various consequences of adultery that shape the lives of Hester, Dimmesdale, and Pearl. In *The Scarlet Letter*, Hawthorne uses Hester's treatment, Dimmesdale and Chillingworth's interaction, and adultery to express law and order in the novel.

First, Hawthorne uses the people's treatment of Hester as a way to contrast the relationship between the Puritan legal system and individual morality. At the beginning of the book, Hester is shown to the people as an example of the punishments those who commit adultery endure. It's mentioned by a matron that "the magistrates are God-fearing gentlemen, but merciful over-much,—that is a truth" (Hawthorne 37). He says this as, usually, the punishment for her crime would be death, but instead, the people decided to lighten this punishment as a result of their internal decisions. This contrast can also be seen when Hester makes her crafts; she's able to market them to anyone but other women, as the general public doesn't want her spreading her sin to other women.

Additionally, the two-sidedness in Hester's experience highlights the limitations of the law when confronted with empathy. While the legal system branded her with a scarlet letter, the same community that punished her also relied on her artistry. Hawthorne talks about how "her needle-work was seen on the ruff of the Governor; military men wore it on their scarfs, and the minister on his band" (102), which shows how the people who punished her also benefited from her skills. The people's need for Hester and her crafts complicates their judgment of her, which suggests that morality cannot be solely enforced through law when human necessity creates exceptions.

In contrast to Hester's public confrontation with the law, the interaction between Dimmesdale and Chillingworth shows a private but similarly destructive way of dealing with society's laws. While the general public was unaware of the crime Dimmesdale committed, Chillingworth says "These holy impulses may or may not co-exist in their hearts with the evil inmates to which their guilt has unbarred the door, and which must need propagate a hellish breed within them" (Hawthorne 160) which makes a strong case that his illness was sent from the gods due to him concealing his sin. Chillingworth then furthers this theory by taking a vigilante-like stance and serves Dimmesdale a placebo medicine specifically to keep him ill. Dimmesdale gives us three different perspectives on one's interactions with law and justice, as he is seen as both innocent and guilty and given punishments for his guilt from both the gods and Chillingworth.

Again, what becomes even more visible in this connection is how Chillingworth becomes a personal embodiment of the law. By giving himself the roles of judge, jury, and executioner, he turns the law into a method of revenge instead of its intended purpose as a justice system. Hawthorne describes Chillingworth as "a mortal man, with once a human heart, has become a

fiend for his especial torment” (206). This quote shows Chillingworth’s shift toward revenge, driven by his angst from Hester and Dimmesdale’s actions. In Chillingworth’s eyes, Dimmesdale’s punishment is no longer an attempt at correction, but a reflection of his dread.

In particular, Hawthorne uses adultery as a main topic due to its various applications amongst multiple people. The main characters all experience different punishments of this law in their own ways, with Hester experiencing the public side of it, Dimmesdale experiencing the concealed version of it, and Pearl as the fallout of it. Hester experiences public humiliation and has to bear a scarlet letter on herself for everyone to witness, and Dimmesdale has to live with the guilt of his crime and his progressing illness. Both of them have one common “scarlet letter” with which they have to live with, Pearl. In the novel, the narrator says that “the child’s whole appearance...irresistibly and inevitably reminded the beholder of the token which Hester Prynne was doomed to wear upon her bosom” (Hawthorne 65). Both endure Pearl as a reminder of the sin that they committed, with Hawthorne specifically stating that “It was the scarlet letter in another form; the scarlet letter endowed with life” (65). Hawthorne specifically makes it a point that Pearl is a scarlet letter that’s been given life and a raging reminder of the crime Hester and Dimmesdale committed.

Furthermore, Pearl’s existence also raises the question of whether the punishment for this sin could ever end. While Hester’s scarlet letter is a physical emblem that could theoretically be removed, Pearl is a living reminder that grows and changes. Hawthorne supports this by saying, “Pearl was the one as well as the other; and only in consequence of that identity had Hester contrived so perfectly to represent the scarlet letter in her appearance” (124). This personification of their sin makes Hester and Dimmesdale confront their sins in a manner not controlled by law, and shows other methods of punishment for sin.

Thus, Hawthorne's novel gives a profound lens into how others uphold laws and serve justice. Throughout the novel, he uses his various characters as ways to express his ideas of how one would experience a similar law. By using Hester's punishment, Dimmesdale's hidden torment, and Chillingworth's manipulation, Hawthorne gives us a unique view of how laws may be enforced on both the outside and inside of all his characters. In conclusion, this novel allows readers to personally consider whether justice is best served by the public or through one's own actions.